

**SUPERIOR COURT, STATE OF CALIFORNIA  
COUNTY OF SANTA CLARA**

**Department 13  
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk  
191 North First Street, San Jose, CA 95113  
Telephone: 408-882-2240

**DATE: July 18, 2025      TIME: 9:00 A.M.**

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856  
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing  
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be  
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

| LINE #                 | CASE #     | CASE TITLE                       | RULING                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
|------------------------|------------|----------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">LINE 5</a> | 19CV346763 | Eldon Grupp vs David Allen et al | <p>Motion: Enforce Settlement</p> <p>Plaintiff, now in <i>pro per</i>, has notice of this motion and has filed no opposition. A failure to oppose a motion may be deemed consent to the granting of the motion. (CRC Rule 8.54c.) Failure to oppose a motion leads to the presumption that the party has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489.) Additionally, the Court finds good cause to GRANT the Motion to Enforce Settlement.</p> <p>However, the parties are ordered to appear at the hearing to address next steps with the Court and the form and content of the final order after hearing.</p> |
| <a href="#">LINE 6</a> | 20CV368954 | CHUN-CHE CHEN vs BRENT LEE       | <p>Motion: Vacate Order Striking Answer &amp; Entry of Default &amp; Default Judgment</p> <p>By stipulation of the parties and good cause appearing, the motions are GRANTED.</p> <p>Defendant to prepare the final order within 10 days of the date of the hearing.</p>                                                                                                                                                                                                                                                                                                                                                                                                       |

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|------------------------|------------|----------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">LINE 7</a> | 20CV368954 | CHUN-CHE CHEN vs BRENT LEE | Motion: Consolidate 20CV368954 &<br>20CV368958<br><br>By stipulation of the parties and good cause<br>appearing, the motions are GRANTED.<br><br>Defendant to prepare the final order within<br>10 days of the date of the hearing. |

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